The State Of Karnataka vs No.1 Ashraf @ Mohammad Ashraf Ali on 11 April, 2018

IN THE COURT OF THE L ADDITIONAL CITY CIVIL &
SESSIONS JUDGE, BENGALURU

Dated this the 11th Day of April 2018

- : PRESENT: -
SMT. SUSHEELA B.A. LL.B.
L Additional City Civil & Sessions Judge,
BENGALURU

SPECIAL C.C. No. 54/2017

COMPLAINANT The State of Karnataka,
By Chamaraj Pet Police Station,
Bengaluru
Public Prosecutor-Bangalore

/ VERSUS /

ACCUSED No.1 Ashraf @ Mohammad Ashraf Ali,
S/o. Mohammad Mustafa Ismil, 27 years,
R/at. No.8/1, 2nd Cross,
Nizamuddin Mohalla, Mysore Road,
Bengaluru.

Permanent resident of:
Madhavapura Vilalge,
Chirai Post & Taluk,
Mothihari District,
Bihar State.

ACCUSED	No.2	Noor Set @ Shamim Aktar	Split up
ACCUSED	No.3	Jamaluddin	Split up
ACCUSED	No.4	Miraz	Split up
ACCUSED	No.5	Nazeer	Split up
ACCUSED	No.6	Masoom	Split up
ACCUSED	No.7	Mohammad Nushad	Split up

Sri.T.A.-Advocate

1	Date of commission of offence	03-09-2014
2	Date of report of occurrence	03-09-2014
3	Date of arrest of Accused No.1	
	Date of release of Accused No.1	ON BAIL
	Period undergone in custody by Accused No.1	
4	Date of commencement of evidence	05-09-2017
5	Date of closing of evidence	14-03-2018

6	Name of the complainant	Chandrakala
7	Offences complained of	Section 370 IPC, Sec.23, 26-J.J. Act & Sec.3, 14-CL Act
8	Opinion of the Judge	Accused No.1 is acquitted
9	Order of Sentence	As per the final order

JUDGMENT

This charge sheet filed by Police Sub-Inspector of Chamaraj Pet Police Station-Bengaluru, against accused No.1 to 7 for the offences punishable under Section 370, 370(A) of I.P.C., Section 3 and 14 of Child Labour (Prohibition) Act, and Section 23 and 26 of Juvenile Justice Act.

2. The charge sheet is filed by the police against accused No.1 to 7, but the trial Court-24th A.C.M.M. Court- Bengaluru while committing the case in C.C.No.34690/2014 has committed case against accused No.1 by splitting up the case against accused No.2 to 7 in C.C.No.2146/2017. Hence, this case proceeded against accused No.1 only.

3. The case of the prosecution in brief, as per the prosecution papers, is stated as follows:

> The accused persons by influencing money of giving more salary to Cw.2 to Cw.8 who are minors, brought them from Nepal and Bihar States and left the said children at Nine Dots, Nizamuddin Mohalla, Baba Lane, Mysore Road, Bengaluru, within the jurisdiction of Chamaraj Pet Police Station, Bengaluru, where the accused persons are running bag manufacturing unit and the accused persons not provided basic necessities to said children and kept them in a place where no adequate air, light and cleanliness available, by detaining them and extracting work from 09.00 a.m., to 09.00 p.m., forcibly, by giving meager salary of Rs.2,000/- per month and taken the work from them as bonded labours. On the basis of credible information, Cw.9-Joyce Premila, Cw.1-Chandrakala taken Cw.10 to Cw.13-the police personnel, labour Officers and NGOs raided on the said bag manufacturing unit on 03-09-2014 and rescued the children-Cw.2 to Cw.8 and brought them to police station and lodged complaint. On the basis of said complaint lodged by the Cw.1-Jayakar, the police registered the case against the accused No.1 and 2 for the offences punishable under Section 370, 370(A) of I.P.C., Section 3 and 14 of Child Labour (Prohibition) Act, and Section 23 and 26 of Juvenile Justice Act.

4. The Investigating Officer has investigated the same and filed charge sheet against accused No.1 to 7 for the offences punishable under Section 370, 370(A) of I.P.C., Section 3 and 14 of Child Labour (Prohibition) Act, and Section 23 and 26 of Juvenile Justice Act. Thereafter, after filing the charge sheet by splitting up case against accused No.2 to 7, as usual the accused No.1 appeared before the Committal Court, the committal Court furnished copy of charge sheet to accused No.1 as contemplated under Section 207 of Cr.P.C. The committal Court passed an order for committing the case to the Hon'ble Principal City Civil & Session Judge-Bengaluru, since the victims are minors and

the said case is exclusively triable by the Child Court and in turn the said case was made over to this Court for further proceedings.

5. After receiving the record by this Court, the summons was issued to accused No.1. In pursuance of the said summons, the accused No.1 appeared before the Court and he was enlarged on bail. Thereafter the learned advocate for accused No.1 submitted that there is no argument before framing charge and requested to frame charge. As a result the charge was framed under Section 370 of I.P.C., Section 23 and 26 of Juvenile Justice Act and Section 3 and 14 of Child Labour (Prohibition) Act, the contents of charge read over and explained in Hindi by translating Kannada version to the accused No.1. The accused No.1 pleaded not guilty and submit crime to be tried. Thereafter the case against accused No.1 set down for prosecution evidence.

6. The prosecution in order to establish the guilt of the accused No.1 has examined 8 witnesses as Pw.1 to Pw.8, got marked as many as 19 documents as Ex.P1 to Ex.P19 and three material objects as MO1 to MO3 and closed its side evidence. In view of incriminating evidence appeared against the accused No.1, he is examined under Section 313 of Cr.P.C., by recording his statement. The accused No.1 denied the alleged incriminating evidence appeared against him as false. The accused No.1 complied the provision of Section 437-A of Cr.P.C. by executing personal bond and surety bond. Thereafter arguments heard from both the sides and the matter is set down for judgment.

7. Having regard to the facts, circumstances and arguments submitted by both the sides, the following points that arise for my consideration are as under:-

> 1. DgÉÆÃ¦AiÀÄÄ ZÁªÀÄgÁd¥ÉÃmÉ ¥ÉÇÃºÃ¸ï oÁuÁ ¸Àgº À ¢ À £ Ý À ªÉÄÊ¸ÀÆgÀÄ gÀ¸A ÉÛ iÀÄ, §Á¨Á ¯ÉÃ£ï£À ¤eÁªÀÄÄ¢ÝÃ£ï ªÉÆºÀ¯ÁèzÀ £ÉÊ£ï qÁmïì £Àºè ¨ÁåUï ºÉÆ¯ÉAiÀÄÄªÀ WÀlPÀ ElÄÖPÉÆArzÀÄÝ ¢£ÁAPÀB03-09-2014 gÀAzÀÄ ¸ÁQë-9 jAzÀ ¸ÁQë-13 gÀªg À ÀÄ zÁ½ £ÀqÉ¹zÁUÀ, ¸ÁQë-2 jAzÀ 8 C¥Áæ¥ÀÛ ¨Á®PÀg£ À ÀÄß ºÉa£ Ñ À ¸ÀA§¼À PÉÆr¸ÀÄªÀÅzÀV £ÀA©¹ £ÉÃ¥Á¼À gÁdå¢AzÀ ªÀiÁ£ÀªÀ ¸ÁUÁtôPÉ ªÀiÁrPÉÆAqÀÄ §AzÀÄ vÀ£Àß WÀlPÀzº À è PÉ®¸ÀPÉÌ ElÄÖPÉÆAqÀÄ ¨sÁgÀwÃAiÀÄ zÀAqÀ ¸ÀA»vÉ PÀ®A 370gÀrAiÀÄºè ²PÁëºÀðªÁzÀ C¥ÀgÁzÀª s £ À ÀÄß J¸ÀVzÁÝgA ÀÉ zÀÄ ¥Áæ¹PÀÆåµÀ£ï ¥ÀPÀëzÀªg À ÀÄ ¸ÀA±ÀAiÀiÁwÃvÀª À ÁV gÀÄdÄªÁvÀÄ¥Àr¸ÀÄvÁÛgA É iÉÄ?

> 2. DgÉÆÃ¦AiÀÄÄ ªÉÄÃ¯É ºÉÃ½zÀ ¢£ÁAPÀ, ¸ÀªÀÄAiÀÄ ºÁUÀÆ ¸À¼ Þ zÀ ºÀ è ¸ÁQë-

C¥Áæ¥ÀÛ 7 ªÀÄPÀÌ¼À£ÀÄß £ÉÃ¥Á¼À zÉÃ±À¢AzÀ ºÉa£ Ñ À ¸ÀA§¼À PÉÆr¸ÀÄªÀÅzÁV ºÉÃ½ PÀgz É ÀÄPÉÆAqÀÄ §AzÀÄ PÉ®¸ÀPÉÌ ElÄÖPÉÆAqÀÄ ªÁ¸ÀPÉÌ AiÉÆÃUÀåªÀ®z è À UÁ½ ¨É¼P À ÀÄ ªÀÄvÀÄÛ ¸ÀéZÀv à É E®èzÀ ¸À¼ Ü z À ºÀ è PÀÆrºÁQ ¨É¼ÀUÉÎ 9.00 jAzÀ gÁwæ 9.00 UÀAmÉªg À ÉUÉ §®ªÀAvÀªÁV zÀÄr¹PÉÆAqÀÄ gÀÆ. 2000/- PÀrªÉÄ ¸ÀA§¼À ¤ÃqÀÄwÛzj ÀÝ AzÀ PÀ®A 23 ªÀÄvÀÄÛ 26 ªÀÄPÀÌ¼À £ÁåAiÀÄ C¢ü¤AiÀÄªÀÄ 2000 gÀrAiÀÄºè ²PÁëºÀðªÁzÀ C¥ÀgÁzÀª s £ À ÀÄß J¸ÀVzÁÝgA ÀÉ zÀÄ ¥Áæ¹PÀÆåµÀ£ï ¥ÀPÀëzÀªg À ÀÄ ¸ÀA±ÀAiÀiÁwÃvÀª À ÁV gÀÄdÄªÁvÀÄ¥Àr¸ÀÄvÁÛgA É iÉÄ?

3. DgÉÆÃ¦AiÀÄÄ ªÉÄÃ¯É ºÉÃ½zÀ ¢£ÁAPÀ, ¸ÀªÀÄAiÀÄ ºÁUÀÆ ¸À¼ Þ zÀ ° À è ¸ÁQë-

C¥Áæ¥ÀÛ 7 ªÀÄPÀÌ¼À£ÀÄß £ÉÃ¥Á¼À zÉÃ±À¢AzÀ ºÉa£Ñ À ¸ÀA§¼À
PÉÆr¸ÀÄªÀÅzÁV ºÉÃ½ PÀgz É ÀÄPÉÆAqÀÄ §AzÀÄ PÉ®¸ÀPÉÌ ElÄÖPÉÆAqÀÄ
ªÁ¸ÀPÉÌ AiÉÆÃUÀªÀ®zè À UÁ½ ¨É¼P À ÀÄ ªÀÄvÀÄÛ ¸ÀéZÀv
à É E®èzÀ ¸À¼ Ü z
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À
PÀÆrºÁQ ¨É¼ÀUÉÎ 9.00 jAzÀ gÁwæ 9.00 UÀAmÉªg À ÉUÉ §®ªÀAvÀªÁV

zÀÄr¹PÉÆAqÀÄ gÀÆ. 2000/- PÀrªÉÄ ¸ÀA§¼À ¤Ãr ªÀÄPÀÌ½UÉ ªÀiÁ£À¹PÀ ºÁUÀÆ zÉÊ»PÀ QgÀÄPÀÄ¼À ¤ÃqÀÄwÛzj ÀÝ AzÀ PÀ®A 3 ªÀÄvÀÄÛ 14 ZÉÊ¯ïØ ¯ÉÃ§gï ¥ÉÇæ»©µÀ£ï DPïÖ gÀrAiÀÄºè ²PÁëºÀðªÁzÀ C¥ÀgÁzÀª s £À ÀÄß J¸ÀVzÁÝgA ÀÉ zÀÄ ¥Áæ¹PÀÆåµÀ£ï ¥ÀPÀëzÀªg À ÀÄ ¸ÀA±ÀAiÀiÁwÃvÀª À ÁV gÀÄdÄªÁvÀÄ¥Àr¸ÀÄvÁÛgA É iÉÄ?

4. AiÀiÁªÀ DzÉÃ±À?

8. My findings on the above points are as under:-

Point No.1: In the Negative.

Point No.2: In the Negative.

Point No.3: In the Negative.

Point No.4: As per the final orders for the following:

REASONS

9. Point No.1 to 3:- As these points are inter-related, hence I have taken up together for my consideration in order to avoid repetition of reasons.

10. In order to prove the alleged offences against the accused, the prosecution has examined in all 8 witnesses as Pw.1 to Pw.8, got marked 19 documents as Ex.P1 to Ex.P19 and three material objects as MO1 to MO3. As per the prosecution case, Pw.1 is the complainant, Pw.4 is the independent witness, Pw.2, Pw.3, Pw.5 to 7 are the police personnel, Labour Officer, NGO persons are the raiding team members, Pw.8 is the Investigation Officer. Hence, this Court shall proceed to see whether the available evidence of said witnesses are sufficient for establishing the alleged offences against accused No.1.

11. In order to establish the alleged offences against accused No.1, the prosecution is required to prove that the accused No.1 along with other accused persons by influencing money of giving more salary to Cw.2 to Cw.8 who are minors, brought them from Nepal and Bihar States and left the said children at Nine Dots, Nizamuddin Mohalla, Baba Lane, Mysore Road, Bengaluru, within the jurisdiction of Chamaraj Pet Police Station, Bengaluru, where the accused persons are running bag

manufacturing unit and the accused persons not provided basic necessities to said children and kept them in a place where no adequate air, light and cleanliness available, by detaining them and extracting work from 09.00 a.m., to 09.00 p.m., forcibly, by giving meager salary of Rs.2,000/- per month and taken the work from them as bonded labours and thereby committed offences punishable under Section 370 of I.P.C., Section 23 and 26 of Juvenile Justice Act and Section 3 and 14 of Child Labour (Prohibition) Act. Hence this Court shall proceed to see whether the prosecution has succeeded in establishing all the above said ingredients of the alleged offences against the accused beyond all reasonable doubt.

12. Before venturing into scan the available material evidence on record, it is necessary to mention the very definition of offences under Section 370 of I.P.C., Section 23 and 26 of Juvenile Justice Act and Section 3 and 14 of Child Labour (Prohibition) Act.

Section 370 of I.P.C defines that:

> Trafficking of persons-[1] Whoever, for the purpose of exploitation,(a) recruits, (b)transports, (c) harbours,
>
> (d)transfers, or (e) receives, a person or persons, by-
>
> First -using threats, or Secondly-using force, or any other form of coercion, or Thirdly -by abduction, or Fourthly-by practicing fraud, or deception, or Fifthly -by abuse of power, or Sixthly -by inducement, including the giving or receiving of payments or benefits, in order to achieve the consent of any person having control over the person recruited, transported, harboured, transferred or received, commits the offence of trafficking.

Section 23 of J.J. Act, defines that:

> Punishment for cruelty to juvenile of child:-Whoever, having the actual charge of or control over, a juvenile or the child, assaults, abandons, exposes or willfully neglects the juvenile or causes or procures him to be assaulted, abandoned, exposed or neglected in a manner likely to cause such juvenile or the child unnecessary mental or physical suffering shall be punishable with imprisonment for a term which may extend to six months, or fine, or with both.
>
> Section 26 of J.J. Act, defines that:
>
> Exploitation of Juvenile or child employee-whoever ostensibly procures a juvenile or the child for the purpose of any hazardous employment keeps him in bondage and withholds his earnings or uses such earning for his own purpose shall be punishable with imprisonment for a term which may extend to three years also be liable to fine.
>
> Section 3 of The Child Labour (Prohibition and Regulation) Act, 1986 defines that:

Prohibition of employment of children in any occupation and process:

(1) No child shall be employed or permitted to work in any occupation of process.

(2) Nothing in sub-section(a) shall apply where the child,-

(a)helps his family or family enterprise, which is other than any hazardous occupations or process set forth in the Schedule, after his school hours or during vacations;

Section 14 of The Child Labour (Prohibition and Regulation) Act, 1986 defines that:

Penalties.-:

(1) Whoever employs any child or permits any child to work in contravention of the provisions of section 3 shall be punishable with imprisonment for a term which shall not be less than three months but which may extend to one year or with fine which shall not be less than ten thousand rupees but which may extend to twenty thousand rupees or with both..

(2)Whoever, having been convicted of an offence under section 3, commits a like offence afterwards, he shall be punishable with imprisonment for a term which shall not be less than six months but which may extend to two years.

(3)Whoever,

(a) fails to give notice as required by section 9; or

(b) fails to maintain a register as required by section 11 or makes any false entry in any such register; or

(c) fails to display a notice containing an abstract section 3 and this section as required by section 12; or

(d)fails to comply with or contravenes any other provisions of this Act or the rules made there under, Shall be punishable with simple imprisonment which may extend to one month of with fine which may extend to ten thousand rupees or with both.

By going through the facts, circumstances and available materials both at oral and documentary, it is just and proper to consider the available material evidence attracts the very ingredients of above said offences in order to fix the liability against accused No.1.

13. By going through the evidence of Pw.4-Joyce Premila, she has deposed that she has received information on 02-09-2014 in a bag manufacturing unit, child labours were working. On that

credible information she went to CID office, Labour Department and Chamaraj Pet Police Station. On that information, the CID police officials, Labour officer, along with NGOs and Chamaraj Pet Police went to Nizamuddin Mohalla, Nine Dots Bag Manufacturing Unit and raided the same. At the time of raiding they found 20 children, who are aged below 14 years working in the bag manufacturing unit, they rescued them and brought them to the police station. On enquiry they have stated that in the bag manufacturing unit no such toilet facility made available to them. They were brought from Nepal and Bihar, they are suffering from malnutrition. The complainant-Cw.1 conducted mahazar and this witness has given representation as per Ex.P11. She has shown her ignorance whether the accused was present at the time of raid or not. On perusal of Ex.P11, it was dated 03-09-2014, not 02- 09-2014 and it was given to DIG-CID by this witness, but the prosecution not elicited whether the said letter was given by this witness on 02-09-2014 or on 03-09-2014. As per this letter there are 10 children working. As per evidence of this witness there were 20 children working, but in the charge sheet only Cw.2 to Cw.8 are alleged as child labours. At this stage, in the chief examination itself, this Court feels to observe that no such corroborative, cogent evidence produced by the prosecution.

14. In the cross-examination the accused No.1 tested the veracity of evidence of this witness by eliciting some commission and omission and also elicited that no such explanation given in Ex.P11 who had informed about extracting work through child labourer in a bag manufacturing unit. Moreover, the said informer is not a witness in the charge sheet. Further she has admitted that no such injuries found on the children at the time of raid to believe the alleged harassment as stated by the prosecution. She has also admitted that at the spot 10 children were not there, but they rescued only 8 children. The accused No.1 denied the evidence of this witness by denial suggestion, but nothing has been elicited favourable to the defense taken by him. She has also admitted that she has not met parents of said children, here Cw.2 to Cw.8 not stepped into witness box to give evidence about the alleged incident. Non-production of their evidence, it is absolutely fatal to the case of prosecution. She has also admitted the children were not subjected to radiological test, dental test and X-ray test to fix their age. When such being the case, it is not safe to accept about the genuinty of existence of Ex.P1 to Ex.P8.

15. By going through the evidence of Pw.1-Chandra Kala-the complainant and also who conducted raid and drawn mahazar as per Ex.P9, she has deposed that on 03-09-2014 she herself along with her police personnel, NGOs conducted raid on bag manufacturing unit at about 11.30 a.m., and rescued Cw.2 to Cw.8 and brought them to the police station and on enquiry they disclosed the accused was extracting work from 09.00 a.m., to 09.00p.m., by giving meager salary of Rs.2,000/-, he has not provided basic necessity and they were detained in a room and in that unit there were four tailoring machines, five children were working in the said machines, they are from Bihar and Nepal. She has drawn mahazar as per Ex.P9 from 01.30 p.m, to 03.30 p.m., and thereafter she has lodged complaint as per Ex.P9. But the prosecution has not produced further chief examination of Pw.2 and not tendered for cross-examination, as a result, her evidence taken out from the record. When there is a drastic stand taken by the prosecution, it is its bounden duty to tender the evidence of Pw.2, but the prosecution slept over the tendering Pw.2 for further evidence.

16. By going through the evidence of Pw.1-Dr.B.Geetha, she has deposed that on 03-09-2014, her Director directed her to go to Chamaraj Pet Police Station orally, as such she went to Chamaraj Pet Police Station at about 10.00 a.m. At that time police personnel, NGOs assembled there taken her to Baba Lane, Mysore Road in a bag manufacturing unit, where the child labourers are working. According to her 15 children were rescued, out of them some were majors. She has conducted dental test and secondary sexual character and issued Ex.P1 to Ex.P8-medical certificates of their age and her signature is Ex.P1(a) to Ex.P8(a).

17. The accused tested her veracity and also elicited some commission and omission and also elicited that she has received oral instruction and that her Director issued written instruction, but she has not produced the same to the police or to the Court. It is her evidence no such name board affixed to the bag manufacturing unit. Further she has deposed that the police brought the children at about 1.30 p.m., to 02.00 p.m., and she has tested said children in the police station itself, whereas it is the evidence of Pw.2 that she has produced the children in the station at 06.45 p.m. If this piece of evidence is taken into consideration, there is a doubt of examination of children by this witness at about 01.30 p.m., or 02.00 p.m.

18. Pw.1 further deposed that:

> "¸ÁªÀiÁ£ÀåªÁV M§â ªÀåQÛAiÀÄ ¤RgÀªÁzÀ ªÀAiÀÄ¸Àì£ÀÄß zÀÈrüÃPÀj¸À¨ÃÉ PÁzÀgÉ D ªÀåQÛAiÀÄ£ÀÄß gÉrAiÀiÁ®f ªÀÄvÀÄÛ D¹¦üPÃÉ ±À£ï mÉ¸ïÖUÀ½UÉ M¼À¥Àr¸À¨ÃÉ PÁUÀÄvÀzÛ É JAzÀgÉ ¸ÁQë gÉrAiÀiÁ®fAiÀÄ ¥ÀjÃPÉë CªÀ±åÀ PÀ«zÉ JAzÀÄ ºÉÃ½gÀÄvÁÛg.É F ¥ÀæPÀgÀtzÀºè ZÁ.¸Á.2 jAzÀ 8 ªÀÄvÀÄÛ ¦ügÉÆÃeï gÀªgÀ ÀÄUÀ¼£ À ÀÄß £Á£ÀÄ ¥ÀjÃPÉëªÀiÁqÀÄªÀ ¸ÀªÀÄAiÀÄzÀºè CªÀg£ À ÄÀ ß gÉrAiÀiÁ®f ¥ÀjÃPÉëUÀÉ M¼À¥Àr¹gÀÄªÀÅ¢®è."

Further she has deposed that:

> "£Á£ÀÄ £ÀªÀÄä ¤zÉðÃ±ÀPgÀ À C£ÀÄªÀÄw ¥Àqz É ÀÄ ZÁ.¸Á.2 jAzÀ 8 ªÀÄvÀÄÛ ¦ügÉÆÃeï gÀªg À À ªÀAiÀÄ¹ì£À zÀÈrüÃPÀgÀtzÀ ¤RgÀvA É iÀÄ §UÉÎ w½¸À®Ä gÉrAiÀiÁ®f ªÀÄvÀÄÛ D¹¦üPÃÉ ±À£ï mÉ¸ïÖUÀ¼£ À ÀÄß ªÀiÁqÀ®Ä £À£U À ÁåªÀÅzÉÃ vÉÆAzÀgÉ EgÀº®è JAzÀgÉ ¸Àj..."

Again she has deposed that:

> "¸ÁªÀiÁ£ÀåªÁV £ÁªÀÅ ªÀÄPÀÌ¼À ªÀAiÀÄ¸Àì£ÀÄß zÀÈrüÃPÀj¸ÀÄªÀÅzÀPÌÉ CªÀgÀ zÀAvÀ¥j À ÃPÉë ªÀiÁr CªÀgÀ ªÀAiÀÄ¸Àì£ÀÄß zÀÈrüÃPÀj¹ PÉÆlÖgÉ CzÉÃ ªÀÄPÀÌ¼À£ÀÄ ß gÉrAiÀiÁ®f ºÁÄUÁ D¹¦üPÃÉ ±À£ï mÉ¸ïÖUÉ M¼À¥Àr¹zÁUÀ £ÁªÀÅ PÉÆlÖ ªÀAiÀÄ¹ì£À zÀÈrüÃPÀgÀtQÌAvÀ JgÀqÀÄªÀµð À eÁ¹Û CxÀªÁ PÀ«Ää §gÀÄvÀz Û É JA§ ¥Àæ±ÉßUÉ ¸ÁQë JgÀqÀÄ ªÀµð À §gÀÄªÀÅ¢®è DgÀÄ wAUÀ¼ÀÄ ªÀåvÁå¸À §gÀÄvÀz Û É JAzÀÄ GvÀj Û ¹gÀÄvÁÛg.É ZÁ.¸Á.2 jAzÀ 8 ªÀÄvÀÄÛ ¦ügÆ É Ãeï gÀªg À £ À ÀÄß £Á£ÀÄ ¥ÀjÃQë¹zÀÉ JAzÀÄ ºÉÃ¼ÀÄªÀ ¸ÀªÀÄAiÀÄzÀºè CªÀgÀ ªÉÄÊªÄÉ Ã¯É AiÀiÁªÀÅzÉÃ UÁAiÀÄUÀ¼ÀÄ £À£ÀUÉ PÀAqÀÄ§gÀº®è."

She has also admitted that at the time of examination of Pw.2 to Pw.8, their parents were not present before her. The above said evidence also crystallizes that while assessing the age of the children she has not followed rules fixed by the Government by way of conducting dental test, radiological test and ossification test. At this stage this Court feels to observe that whatever she has given as per Ex.P2 to Ex.P8, not acceptable for consideration.

19. By going through the evidence of Pw.3-P.N.Nagappa, Senior Labour Inspector, he has deposed supporting the case of the prosecution in his chief examination. The accused tested veracity of evidence of this witness by denial suggestion, nothing has been elicited favourable to the defense taken by him. Further it is his evidence that he doesn't know what tests were conducted by the doctor to certify the age of children. He has also deposed that no such notice given to the parents of Cw.2 to Cw.8. He cannot remember whether the bag manufacturing unit was having name board in the above said unit. He has also admitted that the said factory is situated in the busy area, but no such independent witnesses accompanied the team at the time of raid, except the official witnesses. He has also not taken any individual in raiding said bag manufacturing unit. No supporting documents collected to show accused No.1 was the owner of said bag manufacturing unit or in what capacity he was engaged to the alleged bag manufacturing unit, in the absence of above said documentary evidence, it is not safe to accept the case of the prosecution.

20. By going through the evidence of Pw.5-Head Constable-K.Prasanna Kumar, he has also deposed supporting the case of the prosecution in respect of conducting of raid by Cw.2 to Cw.4 along with this witness and he is one of the signatory to Ex.P9-Mahazar and his signature is Ex.P9(c). The accused tested veracity of evidence of this witness by eliciting some commission and omission, except denial suggestion nothing has been elicited favourable to the defence taken by the accused. He has also admitted that no such major person given statement along with 3 children. He has also admitted that all the 8 children don't know Kannada read and writing. He has not seen any injuries on the body of said children. He has also admitted that similar things like MO1 to MO3 are available in the market. At this stage this Court opines unless and until produces evidence of victim children, it is not safe to accept the evidence of this witness to believe alleged offence against accused No.1.

21. By going through the evidence of Pw.6- Venkateshappa-Retired P.S.I., he has deposed that on 03-09- 2014 at about 06.45 p.m., he has received complaint as per Ex.P10 and his signature is Ex.P10(b), he has registered the case in Crime No.288/2014 punishable under section 370, 370- A of IPC, Section 3, 14 of Child Labour (Prohibition) Act, Section 23 and 26 of J.J. Act. He has received complaint from NGO as per Ex.P11 and his signature is Ex.P11(a). He has received statement of victims and mahazar drawn as per Ex.P9 from Cw.1 and his signature is Ex.P9(d). Thereafter he has prepared F.I.R. as per Ex.P12 and his signature is Ex.P12(a) and submitted the same to the Court and to his higher officers. He has obtained age estimation certificate of victims as per Ex.P1 to Ex.P8. Cw.1 produced three material objects as per MO1 to MO3. Thereafter he has subjected them to P.F. in 115/2014. On the same day he has recorded statement of Cw.10 to Cw.13 and then sent children to Balakara Bala Mandir. On 19-09- 2014 he has received statement of Cw.2 to Cw.8 as per Ex.P13 to Ex.P19 and his signature is Ex.P13(a) to Ex.P19(a). Thereafter he has filed charge sheet.

22. The accused No.1 tested the veracity of evidence of this witness, except denial suggestion, nothing has been elicited favourable to the defense taken by him. Admittedly he is also admitted that the victims did not know to read and write Kannada. He has also admitted that there is no shara as to who has translated the contents to Ex.P13 to Ex.P19 from Kannada to Hindi and from Hindi to Kannada language. At this stage, the evidence of this witness is a formal one. He has also admitted that he has not produced any document to show that Cw.2 to Cw.8 are from Bihar and Nepal State.

23. By going through the evidence of Pw.7-R.Kempanna- Retired Superintendent of Balakaara Balamandira, he has deposed that on 03-09-2014 he has received seven children and on 19-09-2014 he has recorded statement of victim as per Ex.P.13 to Ex P19 and his signatures are as Ex.P13(b) to Ex.P19(b). The accused No.1 tested the veracity of evidence of this witness, except denial suggestion, nothing has been elicited favourable to the defense taken by him. At the same time he has admitted that the parents of victim were not present at the time of recording their statement. Further he has admitted that he has not seen any injuries on the body of victim children when he has received them. At this stage, this Court feels to observe that unless and until the evidence of this witness is corroborated by corroborative, cogent oral evidence of independent witnesses, it is not safe to accept the evidence of this witness beyond all reasonable doubt.

24. By going through the evidence of Pw.8- Chandranna.N., retired P.S.I., he has deposed that on 19-09- 2014 he has recorded statement of Cw.2 to Cw.8 in the presence of Superintendent of Balakara Bala Mandira and it was typed in Kannada and the contents were explained in Hindi to the children and his signature is Ex.P13(c) to Ex.P19(c), he has identified the signature of Cw.2 as Ex.P13(d), signature of Cw.3 as Ex.P14(d), signature of Cw.6 as Ex.P17(d), signature of Cw.7 as Ex.P18(d), signature of Cw.8 as Ex.P19(d). The accused No.1 tested the veracity of evidence of this witness. This witness shown his ignorance about the date on which Cw.2 to Cw.8 were sent to Balakara Bala Mandira. He has also admitted that Cw.2 to Cw.8 doesn't know to read and write Kannada, parents /guardians of victim were not present at the time of recording their statements. He has also admitted that there is no mentioning of shara or name of the person as to who has translated the contents statements to the victim. He has also admitted that no such injuries found on Cw.2 to Cw.8-the victims. Here also when there is a drastic stand taken by the prosecution, it is its bounden duty to produce corroborative, cogent evidence of independent witnesses, non production of their evidence it is absolutely fatal to the case of the prosecution.

25. The oral and documentary evidence placed on record by the prosecution is insufficient to prove the alleged offences against the accused No.1 beyond all reasonable doubt. The defense of the accused No.1 and the facts and circumstances of the case including materials on record discussed above probablizes the defense of the accused No.1 rather than the case of the prosecution.

26. In view of aforesaid reasons, I hold that the evidence of Pw.1 to Pw.8, got marked 19 documents as Ex.P1 to Ex.P19 and three material objects as MO1 to MO3, placed on record in respect of alleged offences, is insufficient to prove that the accused No.1 along with other accused persons by influencing money of giving more salary to Cw.2 to Cw.8 who are minors, brought them from Nepal and Bihar States and left the said children at Nine Dots, Nizamuddin Mohalla, Baba Lane, Mysore Road, Bengaluru, within the jurisdiction of Chamaraj Pet Police Station, Bengaluru, where the

accused persons are running bag manufacturing unit and the accused persons not provided basic necessities to said children and kept them in a place where no adequate air, light and cleanliness available, by detaining them and extracting work from 09.00 a.m., to 09.00 p.m., forcibly, by giving meager salary of Rs.2,000/- per month and taken the work from them as bonded labours and thereby committed offences punishable under Section 370 of I.P.C, Section 23 and 26 of Juvenile Justice Act, Section 3 and 14 of Child Labour (Prohibition) Act., beyond all reasonable doubt. Consequently I hold Point No.1 to 3 in the "Negative".

27. Point No.4:- For the above said reasons and discussions on Point No.1 to 3, I hold that the accused No.1 is entitled for an order of acquittal. Hence, in the final result, I proceed to pass the following:

> ORDER Acting under Section 235(1) of Cr.P.C., the accused No.1 is acquitted for the offences punishable under section 370 of IPC, Section 23 and 26 of J.J. Act and Section 3 and 14 of Child Labour Prohibition Act. His bail bond and surety bond stand cancelled.
>
> Since the case against accused No.2 to 7 is split up, office is directed to keep MO-1 to MO-3 as it is until disposal of case against accused No.2 to 7.
>
> (Dictated to the Judgment Writer, transcribed and typed by her. It is then corrected, signed and pronounced by me in open court on this the 11th Day of April 2018.) (SUSHEELA) L ADDL.CITY CIVIL & SESSIONS JUDGE, BANGALORE.

ANNEXURE

LIST OF WITNESSES EXAMINED ON BEHALF OF PROSECUTION

Pw.1	Dr. B.Geetha	Cw.14	05-09-2017
Pw.2	Chandrakala	Cw.1	21-10-2017
Pw.3	P.N. Nagappa	Cw.11	23-12-2017
Pw.4	Joyce Premila	Cw.9	23-12-2017
Pw.5	K. Prasanna Kumar	Cw.12	30-01-2018
Pw.6	Venkateshappa	Cw.17	30-01-2018
Pw.7	R.Kempanna	Cw.15	01-03-2018
Pw.8	Chandranna.N.	Cw.16	14-03-2018

LIST OF DOCUMENTS MARKED ON BEHALF OF PROSECUTION

Ex.P 1 to 8	Age determination certificates of victims	Pw.1	05-09-2017
Ex.P 1a to 8a	Signatures of Pw.1	Pw.1	05-09-2017
Ex.P 1b to	Signature of Pw.6	Pw.6	30-01-2018

8b			
Ex.P 9	Mahazar	Pw.2	21-10-2017
Ex.P 9a	Signature of Pw.2	Pw.2	21-10-2017
Ex.P 9b	Signature of Pw.3	Pw.3	23-12-2017
Ex.P 9c	Signature of Pw.5	Pw.5	30-01-2018
Ex.P 9d	Signature of Pw.6	Pw.6	30-01-2018
Ex.P 10	Complaint	Pw.2	21-10-2017
Ex.P 10a	Signature of Pw.2	Pw.2	21-10-2017
Ex.P 10b	Signature of Pw.6	Pw.6	30-01-2018
Ex.P 11	Complaint given to DIG-CID	Pw.4	23-12-2017
Ex.P 11a	Signature of Pw.6	Pw.6	30-01-2018
Ex.P 12	FIR	Pw.6	30-01-2018
Ex.P 12a	Signature of Pw.6	Pw.6	30-01-2018
Ex.P 13 to 19	Statements of victim boys	Pw.6	30-01-2018
Ex.P 13a to 19a	Signatures of Pw.6	Pw.6	30-01-2018
Ex.P 13b to 19b	Signatures of Pw.7	Pw.7	01-03-2018
Ex.P 13c to 19c	Signature of Pw.8	Pw.8	14-03-2018
Ex.P 15d, 16d	LTM of Cw.4, Cw.5	Pw.8	14-03-2018
Ex.P 13d	Signature of Cw.2	Pw.8	14-03-2018
Ex.P 14d	Signature of Cw.3	Pw.8	14-03-2018
Ex.P 17d	Signature of Cw.6	Pw.8	14-03-2018
Ex.P 18d	Signature of Cw.7	Pw.8	14-03-2018
Ex.P 19d	Signature of Pw.8	Pw.8	14-03-2018

LIST OF MATERIAL OBJECTS MARKED ON BEHALF OF PROSECUTION

MO 1	Maroon colour cut piece	Pw.5	30-01-2018
MO 2	Green colour zip	Pw.5	30-01-2018
MO 3	Spong	Pw.5	30-01-2018

LIST OF WITNESSES EXAMINED, DOCUMENTS MARKED & MO.S MARKED ON BEHALF OF DEFENCE

-NIL-

L ADDL.CITY CIVIL & SESSIONS JUDGE, BANGALORE.

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